

out to Defendants’ counsel no less than four times to understand whether or not new counsel would be substituting in, of which topic Plaintiff’s counsel was aware from the May 13, 2026 Case Management Conference. (*Id.*, ¶¶ 7-10, Exh. I.) Plaintiff’s counsel’s requests for information were met with silence. (*Ibid.*)

Cox’s Opposition describes innerworkings between his present and former counsel from shortly after the Answer was filed in January 2026 until the Association of Attorneys was filed on June 30, 2026, in an attempt to explain that Cox’s legal representation was in flux during that time. Cox offers no explanation for why, during that timeframe, his former counsel did not respond to Plaintiff’s counsel’s inquiries regarding the status of the Defendants’ representation or why his current counsel did not, at the very least, informally reach out to Plaintiff’s counsel to identify himself in light of the anticipated formal substitution and apparent difficulties in formally associating in as counsel. Had Cox’s current counsel done so, he perhaps would have become aware of the outstanding discovery.

The Court does not find that these circumstances warrant relief from Cox’s waiver of objections. Nor did Cox properly request such relief. (See §§ 2030.290, subd. (a)(1)-(2), 2031.300, subd. (a)(1)-(2).) These circumstances warrant granting Cox until September 6, 2026 to provide substantive responses. While these circumstances might support Cox’s request that the sanctions be directed solely at Cox’s former counsel, this request appears moot, as Plaintiff does not request sanctions against Cox’s current counsel. Moreover, Plaintiff’s request for sanctions is DENIED for failure to properly notice the request, as Plaintiff fails to provide any authority for the sanctions in its Notice of Motion. (See Rules of Court, rule 2.30(c).) Moreover, Plaintiff’s Memorandum fails to state or discuss the authority upon which its sanctions request is based.

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In The Matter of Jane Marie Dumas

26CV001359

PETITION FOR CHANGE OF NAME

TENTATIVE RULING: Notice has been properly published and no written objections have been filed. The petition is GRANTED without need for appearance.